

		Moving party to give notice.
4	White vs. Walmart Inc.	TENTATIVE RULING: <u>Demurrer and Motion to Strike</u> Defendant Walmart Inc. demurs to and moves to strike portions of the Complaint filed by Plaintiff Robbie D. White. For the following reasons, the hearing on Defendant’s demurrer and motion to strike is CONTINUED to July 15, 2026, at 9:00 a.m. in Department N16. If Plaintiff elects to file a supplemental opposition as discussed below, Plaintiff shall do so by July 8, 2026. <u>Statement of Law</u> A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (<i>Lambert v. Carneghi</i> (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the “four corners” of the pleading (which includes exhibits attached and incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452. Although California courts take a liberal view of inartfully drawn complaints, it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (<i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413.) On demurrer, a complaint must be liberally construed. (Code Civ. Proc., § 452; <i>Stevens v. Superior Court</i> (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (<i>Aubry v. Tri-City Hospital Dist.</i> (1992) 2 Cal.4th 962, 966-67.) A pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. The degree of detail required depends on the extent to which the defendant in fairness needs such detail, which can be conveniently provided by the plaintiff. Less particularity is required when the defendant ought to have co-extensive or superior knowledge of the facts. Under normal circumstances, there is no need for specificity in pleading evidentiary facts. However, bare conclusions of law are insufficient. (Code Civ. Proc., §§ 425.10(a), 459; <i>Doe v. City of Los Angeles</i> (2007) 42 Cal.4th 531, 549-50; <i>Zelig v. County of Los Angeles</i> (2002) 27 Cal.4th 1112, 1126; <i>Doheny Park Terrace HOA v. Truck Ins. Exchange</i> (2005) 132 Cal.App.4th 1076,